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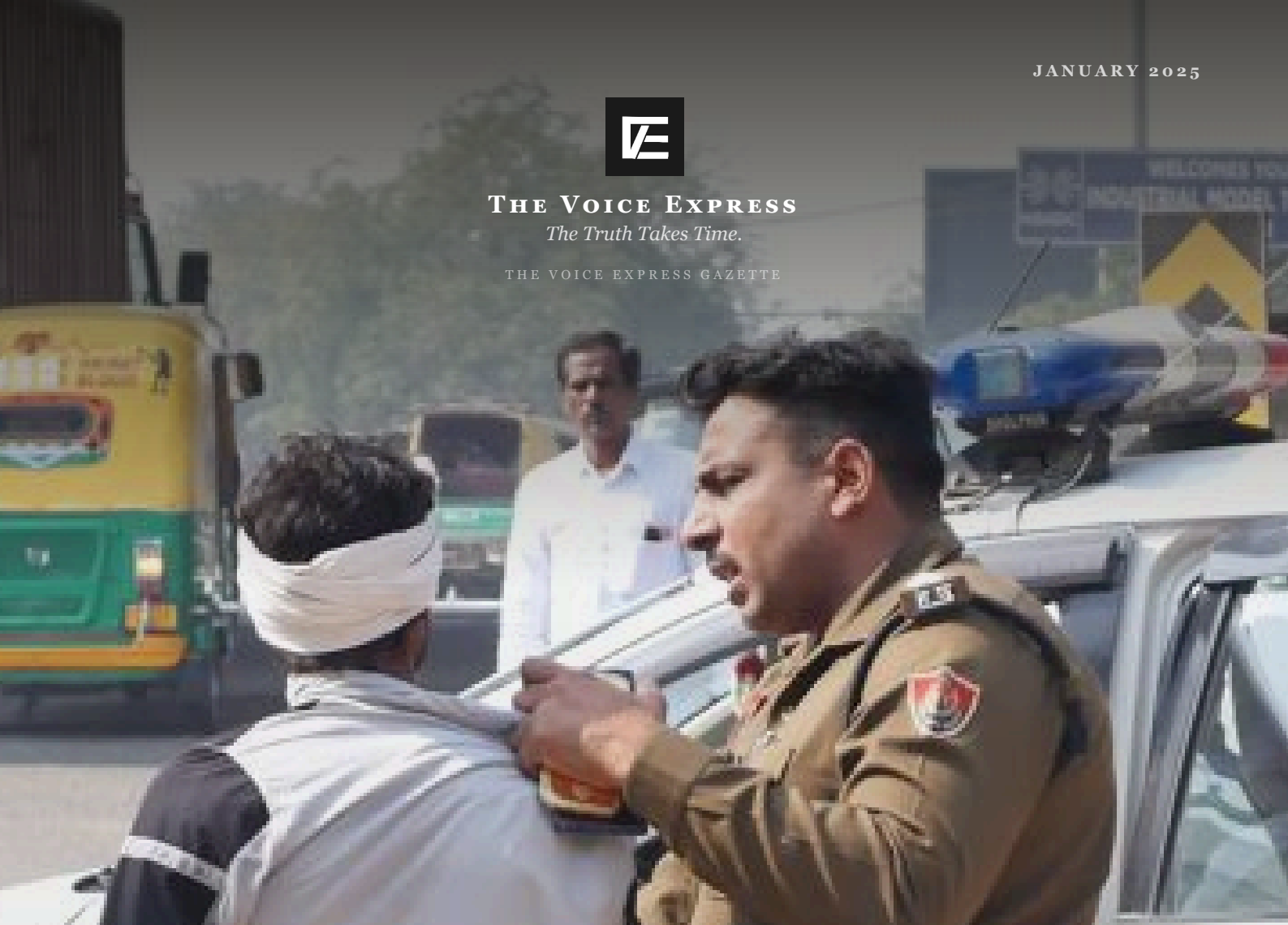

LABOUR

'Section 144' at IMT Manesar: Police Violence Against Protesting Maruti Workers Intensifies Ahead of Tripartite Meet, Violates Court Order

Haryana police deployed in force on 29th-30th January 2025 to disrupt the Maruti Suzuki Asthayi Mazdoor Sangh's planned mass demonstration at IMT Manesar — invoking Section 144 of the now-obsolete IPC despite a court order permitting the gathering. A photo essay and press release from the scene.

BY MOULI SHARMA

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Members of the *Maruti Suzuki Asthayi Mazdoor Sangh* (MSAMS), were arrested & forcibly dispersed from their protest site at IMT Manesar ahead of their mass demonstration against the company management, for which they had sought & recieved the local Court's permission. Despite the favourable court order, officers of the Manesar, Gurgaon & Pataudi police were deployed in large numbers to disrupt the workers' gathering, claiming an imposition of Section 144 of the now obsolete IPC. Police declined to comment on the situation, & even threatened to detain media persons present on site. Following is the official press release of the MSAMS.

January 30, 2025: IMT Manesar remained the scene of widespread chaos throughout 29th and 30th January as the Haryana police lay siege over Manesar tehsil, the site for a massive demonstration and march of non-permanent workers of Maruti Suzuki challenging the system of hire-and-fire of workers and demanding permanent jobs, equal pay, and other facilities for temporary workers at par with permanent workers. The unmeasured unleashing of repression on peaceful protesters indicates how threatened the Maruti Suzuki management feels by any questions being raised about its hire and fire labour policies, the main source of its massive profits. It also revealed the hand and glove coordination of the company and the local administration.

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Afternoon, 30th January 2025:*A young worker travelling from overstate is detained along with his luggage. After the arrest of senior movement leaders from the terminated workers' movement in the morning, the police began a second round of detentions in the afternoon. Image courtesy: Mouli Sharma for TVE*

The ‘Manesar Chalo’ call had been announced from a massive gathering of current and erstwhile temporary Maruti workers in front of the labour department in Gurugram on the 10th of January, when they submitted a Charter of Demands to the management and the labour department, signed by more than 4,000 workers, represented by the Maruti Suzuki Asthayi Mazdoor Sangh (MSAMS). The MSAMS is a platform of various categories of non-permanent workers currently and previously employed across all Maruti plants in Haryana. Workers have been demanding permanent employment for work of a permanent nature, equal pay for equal work, recruitment of 10,000 permanent workers in the upcoming CT exam being held by the company in February, 40% pay hike for all temporary workers, bonus and other facilities equal to that of permanent employees and useful training and recognized certificates for apprentices and student trainees. The MSAMS was established through a mass meeting of workers in Gurgaon on January 5, this year, marking the start of the present agitation.

> *A team of workers has also gone to Chandigarh to move the High Court against the imposition of Sec 144 and the disregard of the lower court's order recognizing the right of workers to protest peacefully 500m away from the plant premises.*

Not being allowed to gather in IMT Manesar today, workers are set to regroup in front of the labour department at the DC office in Gurgaon tomorrow, on the morning of January 31, for the second meeting of the tripartite negotiation on the CoD submitted on January 10. A team of workers has also gone to Chandigarh to move the High Court against the imposition of Sec 144 and the disregard of the lower court's order recognizing the right of workers to protest peacefully 500m away from the plant premises.

“All power is held by the management, we cannot even voice our demands peacefully!”

The outrage of the workers at the thwarting of their peaceful protest has strengthened their resolve to fight instead of cowing them down. Workers continued to reach the protest site all through this afternoon despite the repeated detentions and circulation of news of police repression. Mahabir, a young worker and part of the committee of the Maruti Suzuki Asthayi Mazdoor Sangh remarked on how the police had uprooted the tents and scattered workers collecting peacefully at the Manesar Tehsil with brutal lathi-charge and repeated detentions. “We had come here with great hopes, that finally we have a platform to voice our distress and raise our demands, but it is clear that all the power is held by the management, who directs the police. Workers do not even have the right to stand up for our rights.” Another worker who had travelled from Jharkhand to attend the protest questioned, "where are we to go in this cold weather now? Our food and shelter are gone. We feel like we are slaves in a free country.”

Evening, 29th january 2025:*A police officer smiles for the camera outside IMT Manesar, which had been the protest & campsite of the terminated & temporary Maruti workers for over 4 months since the former began their infinite strike on 18th September last year. After the detentions on Wednesday morning, the tents were destroyed & cleared by the Haryana police, & workers have since been unable to return for fear of capture. Image courtesy: Mouli Sharma for TVE*

> *The Maruti Suzuki management has now approached the Gurgaon civil court twice, first asking for a permanent injunction against the terminated workers and now an injunction against the temporary workers. In both instances, the court recognized the right of workers to demonstrate peacefully 500m away from the company gate and boundary. However, as soon as the court pronounced its orders on the morning of January 29, the police started uprooting the demonstration site of the workers in front of Manesar tehsil.*

> *Khushiram, a worker terminated in 2012 and legal advisor of the Asthayi Mazdoor Sangh spoke to local media on the night of 29th January, "We have never gone against the law, while the company has flouted all labour laws and destroyed the lives of over 11 lakh workers over the last 13 years. Yet at the behest of the management, the police have even refused to respect the order of the Gurgaon court." The Maruti Suzuki management has now approached the Gurgaon civil court twice, first asking for a permanent injunction against the terminated workers and now an injunction against the temporary workers. In both instances, the court recognized the right of workers to demonstrate peacefully 500m away from the company gate and boundary. However, as soon as the court pronounced its orders on the morning of January 29, the police started uprooting the demonstration site of the workers in front of Manesar tehsil.*

"Not going back without the jobs we deserve": Maruti temporary workers

Late Morning, 30th January 2025: *After the first round of arrests, workers who had travelled from neighbouring states felt disheartened & fearful for their safety as well as that of their detained fellows, but their desire to continue the mobilisation ahead of tomorrow's meeting remained absolute. Image courtesy: Mouli Sharma for TVE*

Workers argue that while the company has constantly expanded its sales and profits, the workers who have made this possible have been left out in the cold with no security of employment and labour rights. The company presently employs 83% of its labour force on short-term contracts which state that “Your appointment is purely temporary in nature and has arisen due to fluctuating business and exigencies of work.” Only 5713 permanent workers out of the total workforce of 34,918 enjoy the benefits and high salaries that the company claims to provide its workers.

The company has been recruiting workers directly after school in the name of running an ITI and conducting skill development, others are recruited as temporary workers (TW) for 7-month-long contracts, and many others as contract workers for similar tenures ranging from a few months to a couple of years. Workers are promised to be called for another tenure after some time if they maintain full attendance and work without any complaints. However, not more than a handful are called for a second or third term. Thousands of workers are called for the Company trainee (CT) exam which is seen as a doorway to permanency every year, but only 30-40 workers are finally made permanent across the three plants. This process keeps workers engaged in an on-and-off way through the best years of their lives, i.e. from 18 to 25 after which there is no hope for being recruited again. The experience letter and training certificate provided by the company hold no value in the job market as the workers are placed directly in production and spend their entire time on only one or two stations, gaining no definite skills.

Non-Permanent workers and Terminated permanent workers unite to form a formidable force

A movement for establishing their union initiated by Maruti Suzuki Manesar workers in 2011 is remembered as one of the most militant and important trade union struggles in the country in the last few decades. The year-long agitation succeeded in forming an independent union of workers on March 1, 2012 but was soon sought to be crushed by the management with an outbreak of violence on July 18 of the same year. The company had terminated 1800 contract workers and 546 permanent workers without an enquiry on the pretext of the violence and 147 workers were jailed out of which 31 were convicted and 117 were acquitted after five years in jail while 13, constituting the union body, were sentenced to life imprisonment. Workers terminated in 2012 have remained organised since, and have played an active role in running the criminal and labour cases of all the terminated workers, as well as ensuring support to jailed workers and their families. They have been demonstrating at the site since September 18, 2024 demanding reinstatement of all the workers acquitted by the court and the state SIT. These workers have provided constant support to the young temporary workers in formulating their demands and organizing themselves.

Ravinder Dahiya, a worker who was terminated in 2012 said that they understood the massive scam of temporary employment being run by the company when they sat in IMT Manesar with their own demands and started talking to workers, feeling that this was an issue that has to be raised at all costs. “We are not going to withdraw our agitation till our demands are met. We will not let this company exploit the youth of our country and spit them out into a hopeless future. Our struggle in 2011-12 set an example of the unity between permanent and contract workers. Permanent workers struck work to get contract workers reinstated when the company tried to lock them out. Permanent recruitment of contractual workers was the main ground on the stalemate reached on the first charter of demands submitted by our then newly founded union before the July 18, 2012 incident.”

A fight for our collective futures

The past decade has seen a massive rise in the use of temporary workers in main production processes. While being a cost-cutting measure, such a labour regime also allows the company to maintain a very high work intensity, such that only the very young and able can manage, and which is unsustainable for workers after a few years. It has also allowed the management to scuttle the rights won by unions of the permanent workers, formed after numerous militant struggles. Hundreds of unions were formed in the belt, and the salaries and benefits of permanent workers saw a sharp improvement after numerous historic struggles throughout the 2000s and especially after the 2011 strikes in Maruti Manesar. The Covid lockdown saw many layoffs and shutdowns, marking a setback to the permanent worker's unions which no longer have the same hold over production, nor the impulse for militant struggle. The brunt of production has been shifted onto young non-unionized temporary workers who till now had found little space to articulate their deep distress.

Afternoon, 30th January 2025:*Police assaults a young activist & threatens to detain him. ASP Virender warns journalists not to take pictures. Image courtesy: Mouli Sharma for TVE*

The anger unfolding in Manesar presently is also connected to the great crisis of unemployment being faced by educated working-class youth in the country. On the other hand, the new labour codes and ease of doing business policies are set to give the unlawful practices of hire and fire legal sanction, thus sealing the future of young workers. The present agitation therefore finds resonance far beyond this one company, with the future of work and employment in our country at stake.

> *Press Release, Maruti Suzuki Asthayi Mazdoor Sangh. Contact: 9911258717, 9351771425. Facebook: @Maruti Suzuki Asthayi Mazdoor Sangh, YouTube: @Maruti_Suzuki_Asthayi_Mazdoor_Sangh*

> *Photographs by Mouli Sharma. Mouli is a postgraduate student at jamia Milia Islamia, and a freelance illustrator and writer from New Delhi, India. She is a journalism graduate, a published photojournalist & illustrator, having been featured in The Hindu College Gazette, & the quarterly Pink Disco. She currently serves as the editor of the student-run news site, The Voice Express.*

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